

Court No. - 36

Case :- WRIT - C No. - 3127 of 2010

Petitioner :- Godawari Chaturvedi

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Kamini Pandey, Anand Pandey

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Prakash Krishna, J.

Hon'ble Ram Autar Singh, J.

Challenging the correctness of the electricity bill dated 7.11.2009, the present writ petition has been filed.

The learned counsel for the petitioner submits that the petitioner had taken an electric connection for residential purposes, while the bill has been raised at the rate applicable to the commercial accommodation.

It was rightly pointed out by Sri Rajesh Tripathi, Advocate, for the respondents that in such matters, remedy lies under clause 6.5 of the U.P. Electricity Supply Code. The petitioner may move the competent authority for correction of the bill thereunder.

We, therefore, relegate the petitioner to approach the authority concerned as provided under clause 6.5 of the U.P. Electricity Supply Code. No interference at this stage is called for. The writ petition is dismissed.

For a period of one month no coercive action shall be taken against the petitioner.

(Prakash Krishna, J.)

(Ram Autar Singh, J.)

Order Date :- 3.2.2010

LBV